

MR. JEFFERY MARSHALL vs. SHERRI GRIJALVA; ET AL.
Case No. CU24-06535

Motion by Plaintiff for Leave to File 2nd Amended Complaint

TENTATIVE RULING

CRC 3.1113(a) gives the court discretion to construe the absence of a memorandum as an admission that the motion is not meritorious and cause for its denial.

Second, the motion failed to provide a proposed second amended complaint, nor to identify by declaration the effects of the changes, nor to identify the additions and deletions being made from the currently operative complaint (the first amended complaint). CRC 3.1324.

Third, there is no proof of service, to confirm service of the motion papers at least 16 court days prior to hearing, as required by C.C.P. §1005(b).

This motion is denied, for each and every one of these reasons.

YVONNE GARCIA; ET AL. vs. PRIME ASCOT, LP
Case No. CU25-05130

Defendant PRIME ASCOT L.P.'s Motion to Strike

TENTATIVE RULING

The motion to strike filed by Defendant PRIME ASCOT, LP, is denied without prejudice.

Under CCP Section 1005, supporting papers for a motion are required to be filed at least 16 days prior to the hearing. Although defendant filed a notice of its motion to strike, defendant did not file a memorandum of points and authorities in support of the motion, as required by Rule 3.1113(a) of the California Rules of Court, and defendant did not file a meet and confer declaration, as required by CCP Section 435.5. It appears that these documents were rejected by the clerks office on November 4, 2025 and never resubmitted.

THE PEOPLE OF THE STATE OF CALIFORNIA vs. VALERO REFINING COMPANY
– CALIFORNIA (and its Successors); ET AL.
Case No. CU25-10535

Defendant TOTAL SAFETY U.S., INC's Motion to Appear Pro Hac Vice